

RESPONDENTS' BRIEF

Union of Indica

I. PRELIMINARY OBJECTIONS

1. The writ petition is **not maintainable** due to availability of alternative remedies.
 2. The issues raised involve **policy decisions and national security**, unsuitable for judicial review.
 3. Petitioners lack locus standi to challenge sovereign functions.
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II. ISSUES

(Same as framed by the Court)

III. SUMMARY OF ARGUMENTS

- The SSPPA is a valid exercise of legislative power.
 - No fundamental rights have been violated.
 - Surveillance measures are proportionate and necessary.
 - Courts must defer to executive wisdom in security matters.
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IV. ARGUMENTS

ISSUE 1: THE WRIT PETITION IS NOT MAINTAINABLE

1. The DPDPA provides a specialized adjudicatory mechanism.
 2. Petitioners failed to exhaust remedies before the National Data Protection Board.
 3. Foreign nationals cannot claim the full scope of fundamental rights.
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ISSUE 2: NO FUNDAMENTAL RIGHTS VIOLATION

A. Article 21

- Surveillance was lawful, consensual, and necessary.

- Biometric data was collected with consent.
- Data breach was caused by foreign cyber warfare, not State negligence.

B. Articles 19 & 21

- Reasonable restrictions imposed in the interest of public order.
- Preventive detention was justified by imminent threat.

C. Article 14

- PTS applies uniformly to all residents.
 - No hostile discrimination exists.
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ISSUE 3: SSPPA IS CONSTITUTIONALLY VALID

1. The Act serves compelling State interests.
 2. Predictive policing is a globally accepted law-enforcement tool.
 3. Adequate safeguards exist within executive guidelines.
 4. Encryption backdoors are narrowly tailored.
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ISSUE 4: NATIONAL SECURITY IS BEYOND JUDICIAL REVIEW

1. Courts lack expertise in intelligence and security assessments.
 2. Policy matters require executive discretion.
 3. Judicial interference may compromise national safety.
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V. PRAYER

The Respondent respectfully prays that this Hon'ble Court may:

1. Dismiss the writ petition.
2. Uphold the constitutional validity of SSPPA.
3. Affirm the executive's authority in national security matters.
4. Pass any other order deemed fit.